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Defendants Loanz USA Inc., Consumer Genius, Inc., Jay Modi, Arti Singh, Paul Hadzoglou, Ryan Kader, Rasik Modi, Jay Simmons, Jodi Caruth, Nirdeep Grewal, and Amy Morris' Motion to Quash Service of Summons and Complaint is GRANTED.

I.

BACKGROUND

On April 1, 2026, Plaintiff Radhika Patel ("Plaintiff") filed a complaint against Defendants Loanz USA Inc., Consumer Genius, Inc., Jay Modi, Arti Singh, Paul Hadzoglou, Ryan Kader, Rasik Modi, Jay Simmons, Jodi Caruth, Nirdeep Grewal, and Amy Morris ("Defendants") alleging causes of action for:

1.

Sexual

Harassment (Hostile Work Environment);

2.

Quid

Pro Quo Sexual Harassment;

3.

Gender

Discrimination;

4.

Retaliation;

5.

Failure

to Prevent Harassment, Discrimination, and Retaliation;

6.

Wrongful

Termination in Violation of Public Policy;

7.

Intentional

Infliction of Emotional Distress;

8.

Sexual

Battery;

9.

Sexual

Assault; and

10. Fraud.

On

August 13, 2026, Defendants filed this Motion to Quash Service of Summons and Complaint. On August 26, 2026, Plaintiff filed an opposition. On September 1, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

A

defendant may move to quash service of summons on the ground the court lacks personal jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) A court lacks jurisdiction over a party if there has not been proper service of process. (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.)

“Although

the defendant is the moving party, the plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California.” (In re Automobile Antitrust Cases I and II

(2005) 135 Cal.App.4th 100, 110; see also Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868 [when a defendant moves to quash service of summons, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service”].)

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1440, 1444.) “[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Id., at 1441-1442; Floveyor Internat. v. Superior Court (1997) 59 Cal.App.4th 789, 795 [a filed proof of service creates rebuttable presumption that service was proper if it complies with statutory requirements].)

A plaintiff must demonstrate personal jurisdiction by a preponderance of evidence, based upon competent evidence, and not on an unverified complaint. (Jewish Defense Org. v. Superior Court (1999) 72 Cal.App.4th 1045, 1054-1055.) A trial court has discretion as to whether to accept a process server declaration, or contradictory evidence, in deciding whether service of a summons and complaint was validly accomplished. (Am. Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

III.

DISCUSSION

Defendants move to quash Plaintiff's service of summons and complaint pursuant to Code of Civil Procedure section 418.10.

1.

Defendant Loanz USA Inc.

As to Defendant Loanz USA Inc.

(“Loanz”), Defendants argue that Plaintiff failed to personally serve Loanz's registered agent for service of process, Cogency Global, Inc. (“Cogency”), and did not properly serve Loanz through substituted service. (Motion, at pp. 11-12.)

In support, Defendants contend that Plaintiff's proof of service and supporting declaration of diligence provide that a process server attempted to serve Loanz at 10001 Wilshire Blvd., Los Angeles, CA 90017 on three occasions before leaving it with a “John Doe” at the same address. (Id.; Huang Decl., ¶ 9, Exh. G.) Defendants contend that Plaintiff served Loanz at its California address rather than leave a copy of the summons and complaint at Cogency's

office to properly execute substituted service. (Ibid.)

Effecting service on a corporation

requires delivery of summons and complaint to some person on behalf of the corporation. (Code Civ. Proc., § 416.10; Dill

v. Berquist Construction Co., Inc. (1994) 24 Cal.App.4th 1426, 1437.)

Service may be made upon “the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, [or] a general manager.” (Code Civ. Proc., § 416.10, subd. (b).) Service may also be made upon “a person authorized by the corporation to receive service of process.” (Code Civ. Proc., § 416.10, subd. (b).) This includes persons who are designated as the corporation’s agent for service of process in various statements which a domestic or foreign corporation is required to file with the Secretary of State under various provisions of the Corporations Code. (Code Civ. Proc., § 416.10, subd. (a).)

Substituted service on a corporation under

Code of Civil Procedure section 415.20(a) requires that the documents be left with a person “apparently in charge” and thereafter mailed to the same location, addressed to an individual authorized under Section 416.10. (Ramos v. Homeward Residential, Inc. (2014) 223 Cal.App.4th 1434, 1441–1442; Code Civ. Proc., § 415.20, subd. (a).)

In opposition, Plaintiff argues Defendants

do not demonstrate that service of Loanz was invalid merely because it was not attempted on Cogency. (Opp., at pp. 5-7.) Plaintiff contends that the proof of service for Loanz reports multiple prior attempts of service and delivery of the service documents to the adult apparently in charge at that location. (Ibid.)

The court agrees that substituted

service is not limited to a corporation’s agent of process. However, Plaintiff has not established that the documents were left with a person “apparently in charge” as required in Section 415.20(a). The proof of service filed as to Loanz states that substituted service was served at “1001 Wilshire Blvd PMB 2261, Los Angeles, CA 90017-2415; by serving: (John Doe) - Security Guard - Person Apparently in Charge, Latino Male 51-55 161-180 Lbs Black 5’1 - 5’6.” (Huang Decl., ¶ 9, Exh. G.) The proof of service lists “John Doe” as the person purportedly accepting service and describes him only as a “Security Guard”. Plaintiff provides no

facts demonstrating that John Doe was in charge of Loanz's California office or had any authority to accept service on behalf of Loanz. Plaintiff has not met her burden to establish jurisdiction through valid service.

Accordingly,
the motion is granted as to Loanz.

2.

Defendants Consumer Genius, Inc., Jay Modi, Arti Singh, Paul Hadzoglou, Ryan Kader, Rasik Modi, Jay Simmons, Jodi Caruth, Nirdeep Grewal, and Amy Morris

Defendants further argue that Plaintiff failed to comply with the Hague Service Convention as Defendant Consumer Genius, Inc. is a Canadian corporation and Defendants Jay Modi, Arti Singh, Paul Hadzoglou, Ryan Kader, Rasik Modi, Jay Simmons, Jodi Caruth, Nirdeep Grewal, and Amy Morris are Canadian residents. (Motion, at pp. 12-14.)

Code of Civil Procedure section 413.10(c) governs service of a summons on a resident of a foreign country and provides that, except as otherwise provided by statute, service is to be performed "as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the "Service Abroad of Judicial and Extrajudicial Documents" in Civil or Commercial Matters (Hague Service Convention)." (Code Civ. Proc., § 413.10, subd. (c).)¿

In opposition, Plaintiff does not dispute that the remaining Defendants are Canadian residents and subject to the Hague Service Convention. (Opp., at pp. 7-8.) Instead, Plaintiff argues that substituted service at Loanz's California office is valid. (Ibid.)

The court disagrees. "Failure to properly serve a party who resides outside the country under the Hague Service Convention renders all subsequent proceedings void as to that person. This is true even when the party indisputably had notice of the action." (In re Alyssa F. (2003) 112 Cal.App.4th 846, 852.) Plaintiff must serve the remaining Defendants in accordance with the

Hague Service Convention and any attempted service within California is rendered invalid.

Accordingly, the motion is granted as to the remaining Defendants.[1]

IV.

CONCLUSION

Defendants Loanz USA Inc., Consumer Genius, Inc., Jay Modi, Arti Singh, Paul Hadzoglou, Ryan Kader, Rasik Modi, Jay Simmons, Jodi Caruth, Nirdeep Grewal, and Amy Morris' Motion to Quash Service of Summons and Complaint is GRANTED.

[1] Alternatively,

Defendants argue that the court lacks personal jurisdiction over the Canadian Defendants. (Motion, at pp. 14-19.) As the court granted the motion to quash based on the improper service on the Canadian Defendants, the court does not consider such jurisdictional arguments. However, the court is inclined to find that the court could exercise specific personal jurisdiction over Defendants based on their connection with Loanz, a California corporation.